

AMENDMENT ONE TO THE CONTRACT FOR DIVERSION RELATED SERVICES
between
THE LARAMIE COUNTY COMMUNITY JUVENILE SERVICES JOINT POWERS
BOARD
And
THE CITY OF CHEYENNE, OFFICE OF YOUTH ALTERNATIVES

1. **Parties.** This Amendment ("FIRST AMENDMENT") is made and entered into by and between the Laramie County Community Juvenile Services Joint Powers Board, 310 West 19th Street, Cheyenne Wyoming 82001 ("BOARD"), and the City of Cheyenne, Youth Alternatives, 1328 Talbot Court, Cheyenne, Wyoming 82001 ("CONTRACTOR"). The BOARD and CONTRACTOR have previously entered into a contract for services in the form of a Juvenile Diversion Coordinator to be provided by CONTRACTOR for the period of time between January 1, 2025 and June 30, 2026, also known as City Contract #8111 ("CONTRACT")
2. **Purpose of Amendment.** This FIRST AMENDMENT shall constitute the first amendment to the CONTRACT between the BOARD and the CONTRACTOR. The purpose of this Amendment is to: a) increase the total potential CONTRACT dollar amount by up to Seventy-Eight Thousand, One Hundred Seventy-Five dollars and Sixty-Five Cents (\$78,175.65) for a total maximum contract amount of Two Hundred Thirty-Four Thousand, Four Hundred Twenty-Six dollars and Ninety-Five cents (\$234,426.95) to allow for the BOARD to compensate the CONTRACTOR for services provided by a Diversion Coordinator, and b) allow for CONTRACTOR to provide services and receive compensation for those services by a Diversion Caseworker.

The original CONTRACT required the CONTRACTOR to provide services in the form of a Juvenile Diversion Coordinator working directly with the Laramie County District Attorney's Office for a total maximum payment amount of One Hundred and Fifty-Six Thousand, Two Hundred Fifty-One dollars and Thirty cents with an expiration date for the CONTRACT of June 30, 2026. Although the total maximum payment amount is being increased by this Amendment, the term of the CONTRACT is not changed by the Amendment and the end date of the CONTRACT remains June 30, 2026.
3. **Term of the Amendment.** This Amendment shall commence upon the date the last required signature is affixed hereto, (Effective Date), and shall remain in full force and effect through the term of the CONTRACT unless terminated at an earlier date pursuant to the provisions of the CONTRACT.
4. **Amendments.**

A. The second paragraph of Section II, TERM AND FUNDING, is hereby replaced by the following paragraph set forth below:

The source of funding for the BOARD to enter into the original, unamended Agreement and to make payments for services to CONTRACTOR thereunder is funding which the BOARD receives from Laramie County, Wyoming, a governmental entity. The source of funding for the BOARD to enter into the First Amendment to this Agreement, and to make payments for services to CONTRACTOR under that First Amendment is funding which the Board receives from the Wyoming Department of Family Services, an agency of the State of Wyoming and a governmental entity. Because this Agreement, including as amended, is contingent upon the receipt of said funding, then in the event that the Board does not receive any or all funding from Laramie County and/or the Wyoming Department of Family Services necessary to fund or make payments under this amended Agreement, then the BOARD may terminate this amended Agreement consistent with the terms of Section V, Paragraph D of this Agreement. All provisions in this Agreement related to the sources of funding, including but not limited to, the provisions in Section V, Paragraph D, "Availability of Funds", shall apply to funding both from Laramie County and to funding from the Wyoming Department of Family Services.

B. The two paragraphs comprising Section III, PAYMENT are hereby replaced by the following two paragraphs which are set forth as below:

Through this Agreement as amended, the BOARD has approved possible payment of up to Two Hundred Thirty-Four Thousand, Four Hundred Twenty-Six dollars and Ninety-Five cents (\$234,426.95) for services to be provided by CONTRACTOR as described in Attachment A for the eighteen-month period between January 1, 2025, and June 30, 2026. That amount includes both (a.) the original Agreement total maximum payment amount of One Hundred and Fifty-Six Thousand, Two Hundred Fifty-One dollars and Thirty cents (\$156,251.30), and (b.) the additional Seventy-Eight Thousand, One Hundred Seventy-Five dollars and Sixty-Five Cents (\$78,175.65) which is being added by the First Amendment to the Agreement.

At the time that this Agreement is being amended by the First Amendment to increase the total Agreement maximum payment to the amount of Two Hundred Thirty-Four Thousand, Four Hundred Twenty-Six dollars and Ninety-Five cents (\$234,426.95), payments have already been made under this Agreement pursuant to the original maximum payment amount in the Agreement. Monthly payments have been made to CONTRACTOR prior to the effective date of the Amendment at the value each month of 1/18 of the total original maximum Agreement amount of \$156,251.30, provided that CONTRACTOR complied with all requirements to receive such payments.

Once the First Amendment to the CONTRACT is approved by the parties and takes effect, the monthly payment amount to the CONTRACTOR shall be changed to be as

follows for each month remaining in the term of this Agreement, which ends on June 30, 2026

For each month remaining in the term of this Agreement for which the CONTRACTOR has provided services for a COORDINATOR pursuant to the original terms of this Agreement, including Attachment A, the BOARD will continue pay to CONTRACTOR the value of 1/18 (one eighteenth) of the original Agreement maximum payment amount of \$156,251.30; and also

For each month remaining in the term of this Agreement for which the CONTRACTOR has provided the services of a Diversion Caseworker consistent with the terms of this Agreement, including Attachment A, then the BOARD will pay CONTRACTOR the lesser of the two following amounts: (1.) the amount of 1/9 (one-ninth) of the value of the additional maximum payment amount which is being added to the Agreement through the First Amendment (\$78,175.65); OR (2.) the amount of the pro-rated actual monthly cost to CONTRACTOR for that second, additional CONTRACTOR position. CONTRACTOR shall furnish the BOARD with documentation for the pro-rated actual monthly cost to CONTRACTOR for that coordinator position at the point in time in which the CONTRACTOR starts invoicing for services for the Diversion Caseworker.

Payment for the service is contingent upon CONTRACTOR providing the services being contracted for through the hiring of and provision of services of a Coordinator or a Diversion Caseworker as reflected in this Agreement, including Attachment A. In no event, however, will the total amount paid by BOARD to CONTRACTOR for the contracted services (including payments made before this Agreement was amended by the First Amendment and payments made after this Agreement was amended by the First Amendment) exceed the maximum of Two Hundred Thirty-Four Thousand, Four Hundred Twenty-Six dollars and Ninety-Five cents (\$234,426.95) approved by the Board for those services as described herein.

CONTRACTOR shall submit a monthly invoice reflecting the services provided and request for payment, including that the invoice shall reflect whether the CONTRACTOR is seeking payment for the services of a Coordinator or a Diversion Caseworker. . These payments may be suspended or reduced for any period(s) of time in which the services are not rendered or are not rendered as required by this Agreement. Each such monthly payment will be made only after: (1.) receipt of CONTRACTOR's monthly invoice to BOARD, (2.) receipt of funds from Laramie County, Wyoming and the Wyoming Department of Family Services, and (3.) a vote of approval by BOARD to pay the submitted invoice. Payment shall be in accordance with Wyo. Stat. §16-6-602 (as amended).

C. Paragraph A of Section IV, *RESPONSIBILITIES OF CONTRACTOR* is hereby replaced by the following paragraph set forth below:

CONTRACTOR shall hire and manage a Coordinator and a Diversion Caseworker to work cooperatively with the CONTRACTOR and Laramie County District Attorney's Office. These positions will review referrals made by the Screening Committee and will follow the Diversion Procedures set forth by the Laramie County District Attorney's Office. These positions' responsibilities will relate to the provision of the services which are described in Attachment A and include the job duties set forth in Attachment A. All terms, references, and language regarding a juvenile diversion coordinator position in Attachment A shall apply to the Juvenile Diversion Coordinator and the Diversion Caseworker positions which provide services pursuant to this Agreement.

In witness thereof, the parties to this FIRST AMENDMENT, either personally or through their duly authorized representatives, have executed this FIRST AMENDMENT on the days and dates set out below, and certify that they have read, understood, and agreed to the terms and conditions herein.

LARAMIE COUNTY COMMUNITY JUVENILE SERVICES JOINT POWERS BOARD

By: _____ Date _____
Joel Hickerson, Chair

ATTEST:

By: _____ Date _____

REVIEWED AND APPROVED AS TO FORM ONLY:

By: _____ Date _____
Attorney for Laramie County Community Juvenile Services Joint Powers Board

CITY OF CHEYENNE, WYOMING

By: _____ Date _____
Patrick Collins, Mayor

ATTEST:

By: _____ Date _____

REVIEWED AND APPROVED AS TO FORM ONLY:

By:  Date 1/20/2026
Cheyenne City Attorney's Office